

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

**Interconnection of Large Loads to the
Interstate Transmission System**

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Docket No. RM26-4-000

INITIAL COMMENTS OF CONSUMERS ENERGY COMPANY

On October 23, 2025, pursuant to section 403 of the Department of Energy (“DOE”) Organization Act,¹ the Secretary of Energy (“Secretary”) directed the Federal Energy Regulatory Commission (“FERC” or “Commission”) to initiate rulemaking procedures and consider an Advance Notice of Proposed Rulemaking (“ANOPR”) addressing the interconnection of large loads to the U.S. electric transmission system.² Pursuant to the Commission’s October 27, 2025 Notice Inviting Comments in the above-referenced docket,³ Consumers Energy Company (“Consumers Energy” or “Company”) respectfully submits the following initial comments in response to the ANOPR.

I. EXECUTIVE SUMMARY

The Secretary’s Directive to the Commission recognizes the central role of energy policy as the Administration seeks to revitalize domestic manufacturing and capitalize on the unique and unprecedented opportunities associated with the Artificial Intelligence (“AI”) revolution that is accelerating across the globe. The goals identified in the Secretary’s Directive include ensuring

¹ 42 U.S.C. § 7173.

² Secretary of Energy, *Direction that the Federal Energy Regulatory Commission Initiate Rulemaking Procedures and Proposal Regarding the Interconnection of Large Loads Pursuant to the Secretary’s Authority Under Section 403 of the Department of Energy Organization Act* (Oct. 23, 2025) (“Directive” or “DOE Directive”).

³ *Interconnection of Large Loads to the Interstate Transmission System*, Notice Inviting Comments, Docket No. RM26-4-000 (Oct. 27, 2025) (unreported); *see also* Notice Granting Extension of Time (Nov. 7, 2025).

that “all Americans and domestic industries have access to affordable, reliable, and secure electricity” and ensuring that “large loads, including AI data centers, served by public utilities [are] able to connect to the transmission system in a timely, orderly, and non-discriminatory manner.”⁴

Consumers Energy concurs with the need for sound and thoughtful energy policy that is calibrated to meet the challenges associated with the extraordinary demand growth being witnessed throughout the country, while at the same time avoiding counterproductive approaches that may inadvertently compromise the achievement of the Administration’s goals and the Commission’s core mission of ensuring reliable, safe, and economically efficient jurisdictional services at just and reasonable rates. With this critical balance in mind, Consumers Energy offers a number of preliminary comments on the ANOPR for the Commission’s consideration.⁵

First, Consumers Energy agrees with the ANOPR’s stated goal of avoiding “even arguably affecting the States’ jurisdiction over generation facilities, facilities used in local distribution or only for the transmission of electric energy in intrastate commerce, or transmissions consumed by the transmitter.”⁶ This is an important threshold consideration given that perceived overreaches regarding Commission jurisdiction will unquestionably draw legal challenges that will slow—and potentially frustrate—the objectives that underpin the ANOPR. Consumers Energy believes that, despite the stated goal of respecting the limits of the Commission’s statutory authority, the ANOPR advances a jurisdictional analysis that is untested. Moreover, certain statements in the ANOPR

⁴ DOE Directive at 1.

⁵ Issuance of an ANOPR is a preliminary step in FERC’s rulemaking process, intended to gather public input on potential regulatory changes before a formal Notice of Proposed Rulemaking (“NOPR”) is developed. Consumers Energy expressly reserves the right to expand upon the comments provided herein and to address new and different issues as the Commission’s process unfolds.

⁶ *Ensuring the Timely and Orderly Interconnection of Large Loads*, Advanced Notice of Proposed Rulemaking at P 18 (Oct. 23, 2025) (“ANOPR”) (citing *New York v. FERC*, 535 U.S. 1, 22 (2002); 16 U.S.C. § 824).

raise questions that further complicate the jurisdictional analysis. The Commission should carefully consider the jurisdictional issues presented by the ANOPR and, at a minimum, should clarify that any potential assertion of Commission jurisdiction over the interconnection of large load customers to the transmission system will not change the retail nature of sales to such customers or result in undue preference to them.

Second, if the Commission decides to move forward with a formal rulemaking to address the issues identified in the ANOPR—as opposed to opting for another approach (see discussion below)—the Commission should raise the threshold for large load customers from the 20 MW level suggested in the ANOPR to at least 100 MW (including aggregated commonly owned load). Absent such a move, a definition of large load that reflects a 20 MW threshold would capture a significant number of garden-variety retail customers who are not involved in data centers or AI functions—and their inclusion would exacerbate concerns regarding the implications of potential jurisdictional overreach.

Third, the Commission should ensure that any action taken in response to the ANOPR is carefully crafted to support, rather than undermine, resource adequacy and reliability. In this regard, it bears noting that the Administration has determined that the United States is experiencing an emergency with respect to resource adequacy, and that new dispatchable generation is necessary to meet demand growth.⁷ To the extent that the ANOPR proposes changes to existing processes

⁷ On July 7, 2025, the Department of Energy (DOE) released its Resource Adequacy Report in fulfillment of a directive under President Trump’s Executive Order 14262 of April 8, 2025, “Strengthening the Reliability and Security of the United States Electric Grid.” U.S. Dep’t of Energy, (July 7, 2025) (“DOE Resource Adequacy Report”), <https://www.energy.gov/sites/default/files/2025-07/DOE%20Final%20EO%20Report%20%28FINAL%20JULY%207%29.pdf>. According to the DOE’s findings, there is a need for new dispatchable generation to address demand growth. *See, e.g., id.* at 1 (“The status quo of more generation retirements and less dependable replacement generation is neither consistent with winning the AI race and ensuring affordable energy for all Americans, nor with continued grid reliability (ensuring ‘resource adequacy’). Absent intervention, it is impossible for the nation’s bulk power system to meet the

for studying the interconnection of new generation resources, the Commission should carefully evaluate how such changes could impact and potentially slow the interconnection of new generation that the Administration has made a priority.

Regarding the proposal to allow large load customers to have the same option to build as generator interconnection customers, the Commission should evaluate potential reliability risks given that many large load customers will lack any of the industry expertise that is required to ensure reliable grid operations.

Fourth, the Commission should ensure that implementation of the Secretary's Directive provides adequate time for stakeholder input and Commission deliberation, capitalizes on the stakeholder feedback that is the purpose of any ANOPR, and refrains from elevating form over substance in determining the most appropriate and efficient manner to meet the challenges associated with load growth and large load integration. Whether the best approach is a sweeping rulemaking or something different—potentially a statement of policy outlining goals, objectives, and best practices—should be determined through the ANOPR process, with appropriate time for participation and evaluation. The energy policy matters at issue here are too complex, and the potential for unintended consequences is too great, for the Commission to truncate the timeline for charting a sound and effective path to achieving the goals the Administration has set for American consumers and industry.

II. ABOUT CONSUMERS ENERGY COMPANY

Consumers Energy is a public utility that serves approximately 1.9 million electric customers and 1.8 million natural gas customers in Michigan's Lower Peninsula. Consumers

AI growth requirements while maintaining a reliable power grid and keeping energy costs low for our citizens.”).

Energy is wholly owned by, and one of the two principal subsidiaries of, CMS Energy Corporation, which is a publicly traded company. Consumers Energy owns and operates generating facilities and non-jurisdictional distribution facilities. Consumers Energy is a member of the Midcontinent Independent System Operator, Inc. (“MISO”), a load serving entity (“LSE”) and market participant in the MISO wholesale markets, and takes transmission service in MISO.

III. COMMENTS TO ANOPR

A. *The Commission Should Avoid Jurisdictional Overreach*

The FPA draws a “bright line” between state and federal jurisdiction—and that divide has “become increasingly consequential as the industry transitions to the electricity grid of the future.”⁸ Pursuant to FPA section 201, federal law regulates “the transmission of electric energy in interstate commerce and the sale of such energy at wholesale in interstate commerce,” but federal jurisdiction extends “only to those matters which are not subject to regulation by the States.”⁹ Moreover, “[FERC] shall have jurisdiction over all facilities for such transmission or sale of electric energy, but *shall not have jurisdiction*, except as specifically provided in this subchapter and subchapter III of this chapter, over facilities used for the generation of electric energy or over facilities used in local distribution or only for the transmission of electric energy in intrastate commerce, or over facilities for the transmission of electric energy consumed wholly by the transmitter.”¹⁰ Furthermore, the Commission is expressly precluded from issuing an order “conditioned upon” or “require[ing] the transmission of electric energy . . . directly to an ultimate consumer” absent specific circumstances that are not broadly relevant to the jurisdictional issues

⁸ Matthew R. Christiansen & Joshua C. Macey, *Long Live the Federal Power Act’s Bright Line*, 134 Harv. L. Rev. 1360, 1364 (Feb. 2021).

⁹ 16 U.S.C. § 824(a).

¹⁰ *Id.* § 824(b)(1) (emphasis added).

raised by the ANOPR.¹¹ And nothing in the relevant FPA provisions “shall affect any authority of any State or local government under State law concerning the transmission of electric energy directly to an ultimate customer.”¹²

Consumers Energy submits that the Commission should take care to avoid asserting authority to regulate the matters the FPA has reserved to the states, particularly with respect to the provision of electric service to end-user customers, i.e., retail electric service. As noted above, the ANOPR appropriately anticipates that the proposals it sets forth are likely to raise jurisdictional questions. Therefore, the ANOPR sets forth four asserted justifications for Commission jurisdiction over the interconnection of large-load customers to the transmission grid. Below, Consumers Energy offers preliminary observations on the asserted bases for Commission jurisdiction.

First, the ANOPR states that “like generator interconnections, large load interconnections are a ‘critical component of open access transmission service’ that require minimum terms and conditions to ensure non-discriminatory transmission service.”¹³ Consumers Energy notes that interconnection of retail load has not, in the past, been considered to be a “critical component of open access transmission service.”¹⁴ If the Commission decides to assert such jurisdiction, it would be an untested departure from historical practice. Moreover, to the extent that the ANOPR seeks to base this particular justification for jurisdiction on the *size* of a large load customer—relative to other retail customers—the jurisdictional provisions of the FPA do not appear to support such a distinction.

¹¹ *Id.* § 824k(h).

¹² *Id.*

¹³ ANOPR at P 13.

¹⁴ *Id.* PP 7, 9.

Second, the ANOPR states, citing *FERC v. Electric Power Supply Association*,¹⁵ that “the interconnection of large loads to the transmission system falls under a practice directly affecting Commission-jurisdictional wholesale electricity rates.”¹⁶ However, *EPSA* made clear that the Commission’s “affecting” jurisdiction does *not* extend to matters that the FPA reserves to the states:

FERC cannot take an action transgressing [the statutory limit on its jurisdiction] no matter how direct, or dramatic, its impact on wholesale rates. Suppose, to take a far-fetched example, that the Commission issued a regulation compelling every consumer to buy a certain amount of electricity on the retail market. Such a rule would necessarily determine the load purchased on the wholesale market too, and thus would alter wholesale prices. But even given that ineluctable consequence, the regulation would exceed FERC’s authority, as defined in § 824(b), because it specifies terms of sale at retail—which is a job for the States alone.¹⁷

The *EPSA* Court’s articulation of the limitation on the Commission’s “affecting” jurisdiction is instructive here because, as discussed in more detail below, various aspects of the ANOPR proposals implicate retail sales to end-users.

Third, the ANOPR states that “the proposal does not impinge on States’ authority over retail electricity sales by asserting jurisdiction over the interconnection of large loads to the transmission system.”¹⁸ This assertion seems to be in tension with other aspects being proposed in the ANOPR. For example, although disclaiming an intent to assert jurisdiction over retail sales, the ANOPR refers to large loads having “withdrawal rights,”¹⁹ and large loads seeking “to interconnect . . . to obtain transmission service and the appurtenant benefits,” including “open and

¹⁵ 577 U.S. 260 (2016) (“*EPSA*”).

¹⁶ ANOPR at P 14 (citation omitted).

¹⁷ *EPSA*, 577 U.S. at 280 (footnote omitted).

¹⁸ ANOPR at P 15.

¹⁹ *Id.* P 22.

non-discriminatory access to capacity, energy, and ancillary services.”²⁰ Similarly, while expressly claiming that “nothing in the proposed reforms governs the siting, expansion or modification of generation facilities,”²¹ the ANOPR proposes measures to encourage “efficient siting of loads and generating facilities.”²²

Fourth, the ANOPR submits, as a “justification” for Commission jurisdiction, that “any contrary view of the proposed reforms conflicts with the FPA’s core purposes.”²³ Consumers Energy respectfully submits that a court could deem this argument to be a circular and unsatisfactory explanation as to why Commission assertion over the interconnection of retail load does not impinge on matters that the FPA reserves to the states.

In short, the Commission does not have authority to regulate either generation or retail electric service—the provision of electric service to end-user customers. The Commission should heed the jurisdictional requirements of the FPA.

B. The ANOPR’s Proposed 20 MW Threshold is Too Low

The ANOPR defines large loads as those “greater than 20 MW, consistent with how the Commission has defined large generation resources”²⁴ and proposes that the potential reforms be applicable “to new loads greater than 20 MW and, for hybrid facilities, where the load is greater than 20 MW.”²⁵ The ANOPR requests comments on alternative thresholds, “including whether such a threshold is necessary at all.”²⁶

²⁰ *Id.* P 16 & n.36.

²¹ *Id.* P 15.

²² *Id.* P 20.

²³ *Id.* PP 13, 16.

²⁴ *Id.* P 1 & n.1.

²⁵ *Id.* P 19.

²⁶ *Id.*

Consumers Energy submits that a large load should be defined by reference to a megawatt threshold, and 20 MW is far too low. Although Consumers Energy appreciates that the Commission has applied a 20 MW threshold for its Standard Large Generator Interconnection Procedures and Standard Large Generator Interconnection Agreement,²⁷ a 20 MW threshold for load interconnections would capture a myriad of customers that come nowhere close to the data centers and other major industrial loads driving the ANOPR's proposed reforms.²⁸ A higher threshold is needed to ensure any reforms arising from this proceeding are narrowly tailored to the problem the ANOPR seeks to address. Consumers Energy submits that a 100 MW nationwide threshold would be more appropriate than the ANOPR's 20 MW proposal.

C. The Commission Should Avoid Adopting Measures that Could Harm Resource Adequacy or Reliability

In its July 2025 Resource Adequacy Report, the DOE pointed to “the accelerated retirement of existing generation capacity and the insufficient pace of firm, dispatchable generation additions” as driving “the urgent necessity of robust and rapid reforms.”²⁹ The DOE further noted that (i) “[a]bsent decisive intervention, the Nation’s power grid will be unable to meet projected demand for manufacturing, re-industrialization, and data centers driving artificial intelligence (AI) innovation” and (ii) “reforms are crucial to powering enough data centers while safeguarding grid

²⁷ See, e.g., *Standardization of Generator Interconnection Agreements & Procs.*, Order No. 2003, 104 FERC ¶ 61,103 at P 4 (2003), *order on reh’g*, Order No. 2003-A, 106 FERC ¶ 61,220, *order on reh’g*, Order No. 2003-B, 109 FERC ¶ 61,287 (2004), *order on reh’g*, Order No. 2003-C, 111 FERC ¶ 61,401 (2005), *aff’d sub nom. Nat’l Ass’n of Regul. Util. Comm’rs v. FERC*, 475 F.3d 1277 (D.C. Cir. 2007); *Improvements to Generator Interconnection Procs. & Agreements*, Order No. 2023, 184 FERC ¶ 61,054 at P 1, *order on reh’g*, 185 FERC ¶ 61,063 (2023), *order reh’g & clarification*, Order No. 2023-A, 186 FERC ¶ 61,199, *errata notice*, 188 FERC ¶ 61,134 (2024).

²⁸ See ANOPR at P 1 (“[I]ncreasing quantities of large commercial and industrial load, most notably data centers, are connecting rapidly to the transmission system. NERC explains that the size and speed with which data centers can be connected to the grid present unique challenges for demand forecasting and system planning.”) (citing NERC, *2024 Long-Term Reliability Assessment* at 8 (July 11, 2025), https://www.nerc.com/globalassets/our-work/assessments/2024-ltra_corrected_july_2025.pdf).

²⁹ DOE Resource Adequacy Report, *supra* note 7, at 1.

reliability and a low cost of living for all Americans.”³⁰ Consumers Energy shares the DOE’s concerns about resource adequacy, reliability, and affordability. The Company believes, however, that certain proposals set forth in the ANOPR may inadvertently undermine the DOE’s resource adequacy and reliability goals.

For example, the ANOPR proposes that “to the extent the interconnection customer is not the transmission owner, the interconnection customer shall be afforded the same (or equivalent) option to build as currently provided to generator interconnection customers.”³¹ Although Consumers Energy understands the DOE’s goal of ensuring necessary facilities are built as quickly as possible, the Company is concerned that allowing large load customers the option to build may carry unintended reliability risks given that many large load customers are data centers or other large industrial customers that lack the industry expertise required to ensure safe and reliable grid operations. Unlike large load customers, generation owners have been interconnecting to the nation’s bulk power system over the course of many decades. Simply put, large load customers are not analogous to, or similarly situated with, generation owners—and large load customers should not be entitled to the same option to build as generation owners. Granting large load customers an option to build interconnection facilities risks not only delaying the interconnection of data centers and large industrial customers that are crucial to economic development in this country, but also creating severe reliability problems. The Commission does not have the record to support allowing large load customers the option to build and should decline to do so.

Moreover, to the extent that the ANOPR proposes changes to existing processes for studying the interconnection of new generation, the Commission should carefully evaluate how

³⁰ *Id.*

³¹ ANOPR at P 26.

such changes could impact and potentially slow the interconnection of new generation that the Administration has made a priority. For example, the ANOPR includes several proposals concerning hybrid facilities, including, inter alia, that “load and hybrid facilities should be studied together with generating facilities,”³² “hybrid facilities should be studied based on the amount of injection and/or withdrawal rights requested,”³³ and “hybrid interconnection shall be required to install the system protection facilities necessary to prevent unauthorized injections or withdrawals that exceed the respective rights.”³⁴ As a generation owner with a number of projects pending in the generation interconnection queue, Consumers Energy suggests that the Commission proceed carefully to ensure that reforms proposed in the ANOPR do not slow the interconnection of new generation to the grid. Regional Transmission Organizations (“RTOs”), Independent System Operators (“ISOs”), transmission owners, and generation owners have all worked diligently to incorporate the reforms included in Order No. 2023 and need regulatory certainty moving forward.

In recent years, MISO has implemented multiple reforms to its generation interconnection process to help speed the interconnection of generation to meet the recent load growth. These reforms include the Expedited Resource Addition Study (“ERAS”) process, which established an expedited review in connection with state review of reliability needs for interconnecting new generation.³⁵ Certain ANOPR proposals, such as the notion that “the interconnection study of large loads that agree to be curtailable and hybrid facilities that agree to be curtailable and dispatchable should be expedited,”³⁶ will burden RTO/ISO resources that are also working to

³² *Id.* P 20.

³³ *Id.* P 22.

³⁴ *Id.* P 23.

³⁵ *See Midcontinent Indep. Sys. Operator, Inc.*, 192 FERC ¶ 61,064 (2025).

³⁶ ANOPR at P 24.

perform timely studies of new generation. The Commission must ensure that any additional changes it directs to the generator interconnection process are targeted and do not cause additional delays or any unintended adverse consequences.

D. The Commission Should Focus on the Goals Outlined in the ANOPR and Not Prejudge or Unduly Rush Implementation

Consumers Energy understands and appreciates the urgency conveyed in the DOE Directive to the Commission and in the ANOPR. Nevertheless, the Company believes that it is imperative for the Commission to use the ANOPR process to fully evaluate the issues and not prejudge what will be the most efficient and effective means of advancing the goals of integrating large load customers. Rushing the outcome may ultimately prove counterproductive.

This proceeding is of immense importance to the industry and not only touches on important economic and reliability issues, but also raises complicated jurisdictional questions. It is important for the Commission to allow interested stakeholders adequate time to develop thoughtful comments and to take the time needed to give meaningful consideration to the feedback that is provided.

In the rulemaking proceeding for Order No. 1000, for example, the Commission did not issue a final rule until more than 13 months after it issued the corresponding Notice of Proposed Rulemaking.³⁷ For Order No. 2023, the Commission similarly took more than 13 months to issue a final rule.³⁸ Consumers Energy submits that the issues raised in the ANOPR are of comparable

³⁷ *Transmission Plan. & Cost Allocation by Transmission Owning & Operating Pub. Utils.*, Notice of Proposed Rulemaking, 131 FERC ¶ 61,253 (2010); *Transmission Plan. & Cost Allocation by Transmission Owning & Operating Pub. Utils.*, Order No. 1000, 136 FERC ¶ 61,051 (2011), *order on reh'g*, Order No. 1000-A, 139 FERC ¶ 61,132, *order on reh'g & clarification*, Order No. 1000-B, 141 FERC ¶ 61,044 (2012), *aff'd sub nom. S.C. Pub. Serv. Auth. v. FERC*, 762 F.3d 41 (D.C. Cir. 2014).

³⁸ *Improvements to Generator Interconnection Procs. & Agreements*, Notice of Proposed Rulemaking, 179 FERC ¶ 61,194 (2022); *Improvements to Generator Interconnection Procs. &*

magnitude to those at issue in Order Nos. 1000 and 2023 and should be given commensurate time to ensure the Commission issues a well-reasoned decision, as required under the Administrative Procedure Act.³⁹

Respectfully, attempting to finalize a rulemaking of this potential magnitude within approximately six months may compromise the end result and increase the risk of legal challenges concerning the Commission’s authority and the rule’s legality. For example, litigation surrounding Order No. 2023, which did not involve any of the complex jurisdictional issues raised herein, has been ongoing for more than two years and remains pending. Litigation surrounding Order No. 1920 has remained ongoing since July 2024, and briefing will not conclude until March 2026. In short, if the Commission does not take adequate time to carefully review comments and articulate a durable and well-reasoned approach, there is a risk that implementation of desired reforms will be delayed and potentially frustrated.

Finally, not prejudging the best approach to advancing goals set forth in the ANOPR may mean that the Commission determines that a sweeping federal rule is not the best path forward, particularly if it may frustrate state initiatives that are currently in place or being developed. In this regard, it bears noting that the Administration has decried the “ever-expanding morass of complicated Federal regulation” that “imposes massive costs on the lives of millions of Americans, creates a substantial restraint on our economic growth and ability to build and innovate, and hampers our global competitiveness.”⁴⁰ As a result, the Administration has called upon agencies

Agreements, Order No. 2023, 184 FERC ¶ 61,054, *order on reh’g*, 185 FERC ¶ 61,063 (2023), *order reh’g & clarification*, Order No. 2023-A, 186 FERC ¶ 61,199 (2024).

³⁹ See 5 U.S.C. § 706(2)(c) (providing that a reviewing court shall . . . “hold unlawful and set aside agency action, findings and conclusion found to be . . . “in excess of statutory jurisdiction, authority, or limitations, or short of statutory right.”)

⁴⁰ Executive Order 14192, *Unleashing Prosperity Through Deregulation*, 90 Fed. Reg. 9065, § 1 (Jan. 31, 2025).

to identify at least ten (10) existing regulations for repeal when promulgating a new regulation.⁴¹

With this deregulatory initiative in mind, the Commission should carefully weigh whether a sweeping new federal regulation is the best means of advancing the goal of integrating large load customers to revitalize domestic manufacturing and drive AI innovation.

IV. CORRESPONDENCE AND COMMUNICATIONS

Consumers Energy requests that all correspondence and other communications concerning this filing be directed to the following persons:

Emerson J. Hilton
Senior Associate General Counsel
Consumers Energy Company
One Energy Plaza
Jackson, MI 49201
(517) 788-1241
emerson.hilton@cmsenergy.com

Donna M. Byrne
C. Dixon Wallace III
Troutman Pepper Locke LLP
401 9th Street, NW, Suite 1000
Washington, DC 20004
(202) 274-2886
donna.byrne@troutman.com
dixon.wallace@troutman.com

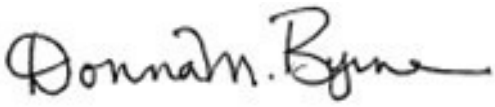
Rachael H. Moore
Senior Attorney
Consumers Energy Company
One Energy Plaza
Jackson, MI 49201
(517) 788-1147
rachael.moore@cmsenergy.com

V. CONCLUSION

Consumers Energy appreciates the opportunity to present these comments and respectfully requests that the Commission consider them before determining how to implement the DOE Directive.

⁴¹ *Id.*

Respectfully submitted,



Donna M. Byrne
C. Dixon Wallace III
Troutman Pepper Locke LLP
401 9th Street, NW, Suite 1000
Washington, DC 20004
(202) 274-2886
donna.byrne@troutman.com
dixon.wallace@troutman.com

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